

See also: The *Lex Mercatoria* 74–77 ■ The Venetian Patent Statute 82–85 ■ The *Madame Bovary* trial 150
 ■ The Federal Trade Commission 184–185 ■ The WIPO Copyright Treaty 286–287

If a book can be **copied by anyone**,
 why would an author or a bookseller
make the effort to write or publish it?

But if **no one else** can ever **make**
a copy of a book, the **spread of**
knowledge is blocked.

So the author and bookseller must be **protected by copyright**, but for a **limited period**.

in 1644, one of the most forthright defenses of the right to freedom of expression ever written.

In the 17th century, as scientists including Isaac Newton made new discoveries and figures such as English philosopher John Locke challenged old ways of thinking, the Stationers' stranglehold began to look outdated. When its exclusive license lapsed in 1694, strenuous efforts by the Company to persuade Parliament to restore the license failed—until they cited authors' right to protect their work from

being copied—their “copy right.” In 1710, Parliament passed the Statute of Anne (named after the British queen of the time).

The right to copy

The Statute of Anne gave exclusive rights to the Stationers' Company for all the books they published, but only for a number of years. Most significantly, it was the first Act to protect authors by granting them, and those to whom they had assigned rights, exclusive right of publication of existing works for

21 years, until 1731. For new works, the same right ran for 14 years from publication, with another 14 years if the author was still living. The Stationers had to buy the rights to publish a new book from the author.

Booksellers or authors had to send a copy of the book to a few recognized libraries, known as “legal deposit libraries.” This practice, which began in 1610, when diplomat and scholar Sir Thomas Bodley created the Bodleian Library in Oxford, England, continues today. ■

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Hold! You crafty ones,
 strangers to work, and pilferers
 of other men's brains! Think
 not rashly to lay your thievish
 hands upon my works.

Albrecht Dürer

**German painter and engraver
 (1471–1528)**

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The battle of the booksellers

Despite the Statute of Anne, the Stationers' Company insisted that they still had exclusive rights on books. In particular, they did not accept that, under natural law as applied on the European continent, their rights on new books should expire.

For more than half a century, in the “battle of the booksellers,” the Stationers mounted legal challenges against booksellers who were printing what the Stationers claimed were pirate copies. Finally, in 1774, the

matter came to a head in the House of Lords in the case of *Donaldson v. Becket*.

Alexander Donaldson, a printer and bookseller, sold cheap reprints of books after their copyright expired. The Stationers claimed that under common law they had perpetual copyright to the books. The Lords ruled that the issue of copyright was one of statute, not common law, and upheld the Statute of Anne's provision that copyright had a limited term.